

SENATE No. 864

The Commonwealth of Massachusetts

PRESENTED BY:

Barry R. Finegold

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act limiting excessive growth in the operating budgets of health care oversight agencies.

PETITION OF:

NAME:

Barry R. Finegold

DISTRICT/ADDRESS:

Second Essex and Middlesex

SENATE No. 864

By Mr. Finegold, a petition (accompanied by bill, Senate, No. 864) of Barry R. Finegold for legislation relative to the operating budgets of health care oversight agencies. Health Care Financing.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 746 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act limiting excessive growth in the operating budgets of health care oversight agencies.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 6 of chapter 6D of the General Laws, as amended by section 14 of
2 chapter 343 of the Acts of 2024, is hereby further amended by adding the following subsection:-

3 (g) The total assessed amount for acute hospitals, ambulatory surgical centers, non-
4 hospital provider organizations, pharmaceutical manufacturing companies, pharmacy benefit
5 managers and surcharge payors shall not increase from the previous year at a rate greater than the
6 health care cost growth benchmark approved by the commission pursuant to section 9 for the
7 same year.

8 SECTION 2. Section 7 of chapter 12C of the General Laws, as amended by section 21 of
9 chapter 342 of the Acts of 2024, is hereby further amended by adding the following subsection:-

10 (g) The total assessed amount for acute hospitals, ambulatory surgical centers, non-
11 hospital provider organizations, pharmaceutical manufacturing companies, pharmacy benefit
12 managers and surcharge payors shall not increase from the previous year at a rate greater than the
13 health care cost growth benchmark approved by the health policy commission pursuant to
14 section 9 of chapter 6D for the same year.